



Hyne Pallets – Advance Pallets

MN - 75043

Phase 1 Determination

Acquisition may be put into effect

7 October 2026

1. Determination and statement of reasons

Notified acquisition	Hyne Pallets Pty Ltd (Hyne) proposes to acquire the wooden pallet manufacturing business of Advance Pallets Pty Ltd (Advance Pallets) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Hyne, operates an integrated timber processing business across Australia. It supplies a range of timber-related products, including timber framing, landscape, engineered wood products and wooden pallets. Hyne operates a wooden pallet manufacturing facility located in Tomago, New South Wales. The target, Advance Pallets, is a wooden pallet manufacturer located in Smeaton Grange, in New South Wales. Advance Pallets acquires the majority of the timber used to manufacture its wooden pallets from Hyne Group.
Overlap and supply chain relationship between the Parties	Hyne and Advance Pallets overlap in the supply of wooden pallets in New South Wales. Hyne supplies timber to wooden pallet manufacturers in New South Wales including Advance Pallets.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. - the merged firm would likely continue to face competition from significant alternative suppliers of wooden pallets in New South Wales. - the merged firm would be unlikely to have the ability or incentive to foreclose rivals' access to timber, given the presence of alternative timber suppliers and wooden pallet manufacturers across New South Wales.
Applications for review	A notifying party, or other person who has been allowed to do so by

	the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**